

VPR053934 In the Matter of Betterton, Michael

County: tulare

Division: Civil Law and Motion

Department: 2

Hearing date: 2026-06-30

Motion: Petitioner's Motion to Compel Initial Responses to Form Interrogatories and Requests for Production of Documents as to Objector Danielle Davido; Sanctions

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Re: In the Matter of Betterton, Michael

Case No.: VPR053934

Date: June 30, 2026

Time: 8:30 A.M.

Dept. 2-The Honorable Bret D. Hillman

Motion: Petitioner's Motion to Compel Initial Responses to Form Interrogatories and Requests for Production of Documents as to Objector Danielle Davido; Sanctions

Tentative Ruling: To find the motions moot; to deny the request for sanctions.

Facts

As an initial matter, the Court notes one motion fee has been submitted to this Court, but that two motions are made here. The Court will condition the order as to initial responses upon payment of the remaining filing fee of \$60.

In this matter, Petitioner served Form Interrogatories and Requests for Production of Documents on Objector Danielle Davido on March 4, 2026.

As of the filing of this motion on April 29, 2026, no responses have been received.

Petitioner seeks to compel initial responses without objections and seeks \$3,640 in sanctions.

On June 22, 2026, Objector filed a late opposition to this motion. The opposition states Objector did not receive the original discovery responses on March 4, 2026, requested electronic copies, received electronic copies on April 14, 2026 and committed to producing responses by May 14, 2026. Further, that responses to the discovery noted above were served May 14, 2026.

In reply, Petitioner notes the untimely opposition, that discovery was served six weeks after the due date.

Authority and Analysis

To find the motions to compel initial responses moot by the service of responses on May 14, 2026.

Sanctions

Under Code of Civil Procedure sections 2030.290(c) (Interrogatories) and 2031.300(c) (Requests for Production), the Court shall impose sanctions “unless it finds that the one subject to the sanction acted with substantial justification or that other circumstances make the imposition of the sanction unjust.”

Here, there appears to be a dispute regarding receipt, by mail, of the discovery at issue that was sent March 4, 2026.

Additionally, based on the lack of receipt via mail and later service of the discovery by electronic means, the Court will not issue sanctions. It appears the discovery was received electronically April 14, 2026 and that responses were provided May 14, 2026, within 30 days of receipt.

Therefore, the Court declines to award sanctions.

If no one requests oral argument, under Code of Civil Procedure section 1019.5(a) and California Rules of Court, rule 3.1312(a), no further written order is necessary. The minute order adopting this tentative ruling will become the order of the court and service by the clerk will constitute notice of the order. Court reporters are usually not available for law and motion matters in the civil division. The parties and counsel must provide their own reporter if they want a transcript of the proceedings.